

**U.S. INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

**Before the Honorable Doris Johnson Hines
Administrative Law Judge**

In The Matter Of

**CERTAIN SMART WEARABLE
DEVICES**

Investigation No. 337-TA-1478

**RESPONDENTS OURARING INC. AND OURA HEALTH OY'S
STATEMENT OF UNCONTESTED CLAIM ELEMENTS**

Pursuant to Ground Rule 11.3 and Order No. 8 (Procedural Schedule), Respondents Ouraring, Inc. and Oura Health Oy (collectively, “Oura” or “Respondents”) respectfully submit this statement of uncontested claim elements with respect to each of Complainants’ Samsung Electronics America, Inc. and Samsung Electronics Co., Ltd. (collectively, “Samsung” or “Complainants”) alleged infringement and technical domestic industry grounds regarding the asserted claim elements of U.S. Patent Nos. 10,642,359 (“the ’359 Patent”), 10,945,677 (“the ’677 Patent”), 10,231,675 (“the ’675 Patent”), and 10,978,789 (“the ’789 Patent”) (collectively, “the Asserted Patents”). Respondents expect Complainant to file a similar statement for uncontested claim elements with respect to invalidity of the Asserted Patents.

Respondents’ positions below are provided in reliance on the ALJ’s July 15, 2026, Order Construing Claim Terms. *See* Order No. 10 (July 15, 2026). Respondents do not waive any of the positions presented in their claim construction briefing or at the claim construction hearing. Respondents respectfully reserve the right to object to the claim constructions adopted by the ALJ and further reserve the right to dispute any claim element, including presently uncontested claim elements, if such claim constructions change for any reason and at any time, including any due to subsequent determinations by the International Trade Commission and/or the Federal Circuit.

Respondents identify herein elements of the asserted claims that are not contested solely for purposes of this proceeding and for no other purpose, in an effort to narrow the issues in dispute in this proceeding, and in view of the presently developed record. Respondents reserve all applicable rights with respect to any subsequent and/or separate proceedings.

I. THE '359 PATENT

Oura disputes that any asserted claim from the '359 Patent is valid and therefore enforceable.

A. Alleged Infringement by Oura

With respect to the claims of the '359 Patent, Oura does not dispute that the products-at-issue in this Investigation include the following claim limitations:

- “A wearable device” (Claims [1-pre], [7-pre], [14-pre])¹
- “a motion sensor” (Claims [1-a], [7-a], and [14-a])
- “a biological sensor” (“Claims [1-b], [7-b], and [14-b])
- “a controller configured to: obtain a movement signal of an object using the motion sensor and a biological signal of the object using the biological sensor” (Claim [1-c])
- “a controller configured to: obtain a movement signal of an object external to the wearable device using the motion sensor” (Claims [7-c] and [14-c])
- “obtain a biological signal of the object using the biological sensor” (Claims [7-d] and [14-d])

¹ While Oura does not dispute that the products-at-issue are a wearable device, Oura disputes that the '359 Patent provides adequate written description and/or are enabled, as required by 35 U.S.C. § 112, to cover “a wearable device” in the form factor of a ring.

Oura disputes that the products-at-issue include any of the other claim elements of the remaining asserted claims of the '359 Patent.

B. Alleged Technical Domestic Industry

With respect to the claims of the '359 Patent, Oura does not dispute that the asserted Domestic Industry Products practice the following claim limitations:

- “A wearable device” (Claims [1-pre], [7-pre], [14-pre])
- “a motion sensor” (Claims [1-a], [7-a], and [14-a])
- “a biological sensor” (“Claims [1-b], [7-b], and [14-b])
- “a controller configured to: obtain a movement signal of an object using the motion sensor and a biological signal of the object using the biological sensor” (Claim [1-c])
- “a controller configured to: obtain a movement signal of an object external to the wearable device using the motion sensor” (Claims [7-c] and [14-c])
- “obtain a biological signal of the object using the biological sensor” (Claims [7-d] and [14-d])

Oura disputes that the asserted Domestic Industry Products practice any of the other claim elements of the remaining asserted claims of the '359 Patent.

II. THE '677 PATENT

Oura disputes that any asserted claim from the '677 Patent is valid and therefore enforceable.

A. Alleged Infringement by Oura

With respect to the claims of the '677 Patent, Oura does not dispute that the products-at-issue in this Investigation include the following claim limitations:

- “A wearable electronic device” (Claims [1-pre], [9-pre], and [16-pre])²
- “a motion sensor” (Claim [1-a])
- “one or more optical sensors includes a light emitting unit and a light receiving unit” (Claim [1-b])
- “a first sensor” (Claims [9-a] and [16-a])
- “a second sensor” (Claims [9-b] and [16-b])

Oura disputes that the products-at-issue include any of the other claim elements of the remaining asserted claims of the ’677 Patent.

B. Alleged Technical Domestic Industry

With respect to the claims of the ’677 Patent, Oura does not dispute that the asserted Domestic Industry Products practice the following claim limitations:

- “A wearable electronic device” (Claims [1-pre], [9-pre], and [16-pre])
- “a motion sensor” (Claim [1-a])
- “one or more optical sensors includes a light emitting unit and a light receiving unit” (Claim [1-b])
- “a first sensor” (Claims [9-a] and [16-a])
- “a second sensor” (Claims [9-b] and [16-b])

Oura disputes that the asserted Domestic Industry Products practice any of the other claim elements of the remaining asserted claims of the ’677 Patent.

² While Oura does not dispute that the products-at-issue are a wearable electronic device, Oura disputes that the ’677 Patent provides adequate written description and/or are enabled, as required by 35 U.S.C. § 112, to cover “a wearable electronic device” in the form factor of a ring.

III. THE '675 PATENT

Oura disputes that any asserted claim from the '675 Patent is valid and therefore enforceable.

A. Alleged Infringement by Oura

With respect to the claims of the '675 Patent, Oura does not dispute that the products-at-issue in this Investigation include the following claim limitations:

- “A method” (Claim [13-pre])
- “determining whether an electronic device is worn on a part of a user’s body using at least one first sensor of the electronic device” (Claim [13-a])
- “wherein the at least one first sensor comprises at least one of a proximity sensor, a gyro sensor, a terrestrial magnetism sensor, or an acceleration sensor” (additional limitation of Claim 14);
- “An electronic device” (Claim [20-pre])³
- “at least one first sensor” (Claim [20-a])
- “at least one second sensor” (Claim [20-b])
- “a memory” (Claim [20-c])
- “at least one processor electrically connected to the at least one first sensor, the at least one second sensor, and the memory” (Claim [20-d])
- “wherein the memory stores one or more computer programs including instructions which, when executed by the at least one processor, cause the at least one processor

³ While Oura does not dispute that the products-at-issue are an electronic device, Oura disputes that the '675 Patent provides adequate written description and/or are enabled, as required by 35 U.S.C. § 112, to cover “an electronic device” in the form factor of a ring.

to: determine whether the electronic device is worn on a part of a user's body"
(Claim [20-e])

Oura disputes that the products-at-issue include any of the other claim elements of the remaining asserted claims of the '675 Patent.

B. Alleged Technical Domestic Industry

With respect to the claims of the '675 Patent, Oura does not dispute that the asserted Domestic Industry Products practice the following claim limitations:

- "A method" (Claim [13-pre])
- "determining whether an electronic device is worn on a part of a user's body using at least one first sensor of the electronic device" (Claim [13-a])
- "wherein the at least one first sensor comprises at least one of a proximity sensor, a gyro sensor, a terrestrial magnetism sensor, or an acceleration sensor" (additional limitation of Claim 14);
- "An electronic device" (Claim [20-pre])
- "at least one first sensor" (Claim [20-a])
- "at least one second sensor" (Claim [20-b])
- "a memory" (Claim [20-c])
- "at least one processor electrically connected to the at least one first sensor, the at least one second sensor, and the memory" (Claim [20-d])
- "wherein the memory stores one or more computer programs including instructions which, when executed by the at least one processor, cause the at least one processor to: determine whether the electronic device is worn on a part of a user's body"
(Claim [20-e])

Oura disputes that the asserted Domestic Industry Products practice any of the other claim elements of the remaining asserted claims of the '675 Patent.

IV. THE '789 PATENT

Oura disputes that any asserted claim from the '789 Patent is valid and therefore enforceable.

A. Alleged Infringement by Oura

With respect to the claims of the '789 Patent, Oura does not dispute that the products-at-issue in this Investigation include the following claim limitations:

- “A portable communication device” (Claim [7.Pre])
- “a first electronic component” (Claim [7.A])
- “a second electronic component” (Claim [7.B])
- “a printed circuit board (PCB) electrically connected with the first electronic component and the second electronic component” (Claim [7.C])
- “a first rigid PCB portion” (Claim [7.C][i])

Oura disputes that the products-at-issue include any of the other claim elements of the remaining asserted claims of the '789 Patent.

B. Alleged Technical Domestic Industry

With respect to the claims of the '789 Patent, Oura does not dispute that the asserted Domestic Industry Products practice the following claim limitations:

- “A portable communication device” (Claim [1.Pre])
- “a housing including a first conduction portion forming a first portion of a side surface of the portable communication device and a second conduction portion forming a second portion of the side surface, the first conduction portion operating

as a first antenna and the second conduction portion operating as a second antenna”

(Claim [1.A])

- “a wireless communication circuitry” (Claim [1.B])

Oura disputes that the asserted Domestic Industry Products practice any of the other claim elements of the remaining asserted claims of the ’789 Patent.

Dated: July 7, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that a copy of the foregoing document was served upon the following as indicated below on July 7, 2026:

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